



DEPARTMENT OF VETERANS AFFAIRS
Office of Procurement, Acquisition and Logistics (OPAL)
Strategic Acquisition Center (SAC)
5202 Presidents Ct, Suite 103
Frederick, MD 21703

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION**

(1) Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for Other Than Full and Open Competition."

This Justification and Approval (J&A) for Other Than Full and Open Competition is executed by the Strategic Acquisition Center - Frederick (SAC-F), on behalf of the Department of Veterans Affairs (VA), Caregiver Support Program (CSP), the program tasked with implementing Caregivers Support under VA, Maintaining Internal Systems and Strengthening Integrated Outside Networks (MISSION) Act.

(2) Nature and/or description of the action being approved.

This activity proposes to negotiate a non-competitive award of a firm fixed price (FFP) modification to contract number 36C10X22C0033, MyRevelations, LLC (MyRevelations), to add five six-month option periods (totaling a maximum of up to 2.5 years). The current contract was established as a 2.5-year "pilot" contract with the expectation to glean key information and adjust requirements prior to an anticipated long-term (10-year) contract.

This modification action will prevent a lapse in the congressionally mandated Financial and Legal services provided to Caregivers of injured Veterans while transitioning to the long-term contract for these services through competition. The addition of five six-month option periods, totaling a maximum of up to 2.5 years, will encompass procurement time of the new long-term (10-year) contract, as well as the Authority to Operate (ATO) and Web Governance approval of a new website, in the event the incumbent is not the awardee of the long-term contract.

(3) A description of the supplies or services required to meet the agency's needs (including the estimated value).

The Caregivers Financial and Legal Services Program was enacted as part of the congressionally mandated VA MISSION Act, to provide Financial and Legal support to Caregivers of Veterans with serious injuries incurred/aggravated in the line of duty. The current pilot contract expires on March 29, 2025. The current contractor, MyRevelations, shall continue to provide these services to all VA markets for all 50 United States and territories to include Guam, Northern Mariana Islands, Puerto Rico, US Virgin Islands, and American Samoa. Under 38 U.S.C.1720G(a)(3)(A)(ii)(VI), as established by section



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161(a)(3) of the VA MISSION Act of 2018, VA is mandated to provide the following services to designated Primary Family Caregivers:

(VI) through the use of contracts with, or the provision of grants to, public or private entities –

(aa) financial planning services related to the needs of injured veterans and their caregivers; and

(bb) legal services, including legal advice and consultation, relating to the needs of injured veterans and their caregivers.

The total maximum estimated value in the event all five six-month options be required is \$38,489,288.60. The total duration of the contract following this modification, if all options are exercised, will not exceed five years. The Government intends only to exercise option periods that will facilitate a seamless transition of the congressionally mandated services between the current contractor and the follow-on long-term contractor.

(4) An identification of the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C.3304(a)(1) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.302-1 entitled, "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements."

(5) A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

MyRevelations is the only vendor with an existing, fully approved ATO and Web Governance approval of a managed service website, enabling the swift execution of congressionally mandated Financial and Legal services and support to Caregivers of injured Veterans, provided by the VA. Under this contract, Caregivers also have access to referrals, downloadable documents, trainings, and videos through the website for which they would lose access due to any lapse. There is no other contractor with an approved ATO and Web Governance approval that would enable Financial and Legal referrals, services, and support at this time. Additionally, if the "pilot" contract expires, the ATO and Web Governance approval is lost.

This extension will prevent a lapse in the Financial and Legal services provided to Caregivers of injured Veterans while transitioning to the long-term contract for Financial and Legal services through competition. The addition of five six-month option periods totaling a maximum of 2.5 years to the "pilot" contract will encompass



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procurement time of a long-term (10-year) contract, as well as the ATO and Web Governance website approval, in the event a different vendor is awarded the new contract. ATO approvals can range anywhere from six to 24 months, depending on the solution proposed by the awardee. The Government intends only to exercise option periods that will facilitate a seamless transition of the congressionally mandated services between the current contractor and the follow-on long-term contractor.

The Government intends to execute a long-term (10-year) contract for the required continuation of these services which will utilize full and open competition. However, due to ongoing insights gained through the “pilot” contract and various changes in the requirement to ensure proper safeguards, the 10-year contract will not be solicited and awarded with ATO and Web Governance approval for a new contractor’s website to go-live in time to prevent a lapse in services and support by the current end date of the pilot contract (March 29, 2025).

VA is strongly committed to mitigating risk by not rushing deployment and implementation of any new systems or websites that could endanger the safety of Caregiver and Veteran personal data. To ensure all programs that access Veterans’ personal data and strictly meet the criteria of keeping the data safe, the ATO process cannot be omitted or significantly expedited, and the process can take upwards of 24 months to implement, depending on the proposed solution by a newly awarded contractor.

During the pilot contract, the VA process allowed for provisional ATOs. To minimize risk and to ensure ongoing efforts to safeguard data, a recent change to VA process no longer allows for provisional ATOs for vendor hosted/managed services, private cloud, or FedRAMP Solutions. This change lengthens the process time for receiving ATO and Web Governance approval to allow a website to go-live.

The pilot contract was awarded September 30, 2022, and allowed for two provisional ATOs. The second provisional ATO was approved on July 25, 2023 and Web Governance approval allowed the website to go live on September 29, 2023 (12 months after award). Without the provisional ATO during the pilot contract, the earliest the ATO could have been received was November 15, 2023 (14 months after award). Factoring in the Web Governance approval timeframe indicates the website would not have been accessible to Caregivers of injured Veterans for use until ~ January 15, 2024 (16 months after award).

Without the proposed extension to MyRevelations under the current “pilot” contract, there will be a significant lapse in all Financial and Legal services to support Caregivers of injured Veterans will cease, which would not only fail to comply with the VA MISSION



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Act and congressional mandate but would adversely affect Caregivers and injured Veterans. The VA has no alternative method for providing Financial and Legal services to Caregivers of injured Veterans; this contract is the only method VA has for providing these services.

(6) A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under 5.202 applies.

Market research was conducted, details of which are in the market research section of this document. This effort did not yield any additional sources that can meet the Government's requirements. Additionally, the proposed action was synopsized on SAM.gov in accordance with Federal Acquisition Regulation (FAR) 5.201. There is no competition for this acquisition.

(7) A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

No award shall be made until the Contracting Officer determines the cost to the Government to be fair and reasonable. This determination will be based on an Independent Government Cost Estimate (IGCE), based on prior market research and the current contract pricing which was determined fair and reasonable during the initial award.

(8) A description of the market research conducted (see part 10) and the results or a statement of the reason market research was not conducted.

A notice of intent for this proposed action to negotiate a non-competitive award of a FFP modification to contract number 36C10X22C0033, MyRevelations, to add five six-month option periods (totaling a maximum of up to 2.5 years), was published to SAM.gov on January 31, 2025. It was requested that interested parties that were capable of providing the continued services without lapse were requested to respond to the Contracting Officer no later than 2:00PM EST on February 14, 2025. As of February 10, 2025, the only response received was from a single vendor inquiring about subcontracting opportunities under the extension of the contract. No vendor has responded with a capability statement or indicated an ability to provide the services sought.

Market research indicates, MyRevelations is the only vendor with an existing, fully approved ATO and Web Governance approval of a managed service website, enabling



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the swift execution of congressionally mandated Financial and Legal services and support to Caregivers of injured Veterans, provided by the VA.

Additionally, MyRevelations is determined to be a responsible in accordance with FAR 9.104-1. The System for Award Management (SAM) Responsibility / Qualification (formerly Federal Awardee Performance, and Integrity Information System (FAPIS)) was reviewed and SAM shows no reports for MyRevelations that would indicate defective pricing, instances of contractor fault or recipient not-qualified, terminations for cause, default, material failure to comply, or non-responsibility of the contractor.

Market research was also conducted for the long-term (10-year) contract and indicates there is opportunity to solicit the long-term contract with full and open competition.

(9) Any other facts supporting the use of other than full and open competition.

The Caregiver Support Program integrated project team (IPT) began the new requirement planning for the long-term (10-year) contract in late 2023/early 2024, approximately 15 months prior to the pilot's current end date of March 30, 2025. Despite these early planning efforts, ongoing insights gained through the "pilot" contract and new/revised Office of Information Technology (OIT) policies and security processes have required adjustments be made in requirements definition, acquisition strategy, and procurement implementation.

The IPT and Contract Team are actively working on the new long-term (10-year) Financial and Legal services contract package that will incorporate revisions and knowledge gained from the pilot program and address revised OIT policies and enable open competition.

This extension of the current contract is being established to provide continued coverage during the transition to the long-term contract while preventing any lapse in services or support provided to Caregivers of injured Veterans.

(10) A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

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to the Contracting Officer no later than 2:00PM EST on February 14, 2025. By the closing date two industry responses were received. The first response was received on February 6, 2025, from an interested vendor inquiring about subcontracting opportunities under the extension of the contract. The second response was received on February 12, 2025, from a vendor with a capabilities statement. Based on the Contracting Officer's review, the contractor was not capable of providing services required under this short-term acquisition.

For the long-term (10-year) contract, a Request for Information was published to SAM.gov on April 2, 2024. Interested and capable vendors were asked to respond by April 17, 2024. The Government received responses from one Small Business (SB) and five Other than Small Businesses (OTSB).

(11) A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

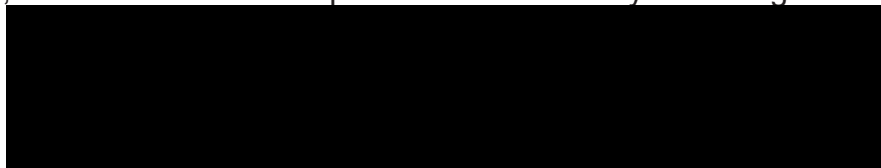
This short-term non-competitive modification to the current "pilot" contract is an extension to allow a seamless transition of the congressionally mandated Caregivers Financial and Legal Services, in the event the incumbent is not the awardee.

Based on the market research for the long-term (10-year) contract, the solicitation will be developed to allow full and open competition.

(12) Evidence that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for an exception to fair opportunity) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel.

I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

Signature:



Health System Specialist
Caregiver Support Program



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(13) Contracting officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief.

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature:

[Redacted Signature]

Lindi Sylvester
Contracting Officer
Strategic Acquisition Center

Date

Approval

Based on the foregoing justification, I hereby approve this acquisition on an "other than full and open competition" basis pursuant to the statutory authority cited in paragraph four above, subject to availability of funds, and provided that the property and services herein described have otherwise been authorized for acquisition. As this action does not exceed \$75M, the certification below required by FAR 6.304 serves as approval.

Signature:

[Redacted Signature]

Christopher D. Parker
Head Contracting Activity
Strategic Acquisition Center and National Acquisition Center

Date: 2025.02.19 16:00:08 -05'00'

Date